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## M E A S U R E

PASSED BY

**The National Assembly of the Church of England.**

To make further provision with respect to the present  
national emergency. [21st December 1944.]

1. The Clergy (National Emergency Precautions) Measure, Expiration  
1939, and the Clergy (National Emergency Precautions) Regula- of Clergy  
tions, 1939, (hereafter in this Measure referred to as the "Principal (National  
Measure" and the "Emergency Regulations"), instead of Emergency  
expiring on the dates therein mentioned, shall expire at the Precautions)  
expiration of six months from such date as the National Assembly 1939, and  
of the Church of England may by resolution declare to be the Regulations.  
date on which the emergency that was the occasion of the passing 2 & 3 Geo. 6.  
of the said Measure came to an end. No. 3.

2.—(1) Where, in consequence of a church having been closed Temporary  
or damaged, or being for other reasons not available for the continuance  
publication of banns or the solemnisation of marriages, directions of certain  
authorising the publication of banns and the solemnisation of directions.  
marriages in some other place of public worship have been given,  
either under paragraph two of the Emergency Regulations, or  
under section three of the Diocesan Reorganisation Committees 4 & 5 Geo. 6.  
Measure, 1941, the directions shall, notwithstanding the expiration No. 1.  
of the said Regulations or, as the case may be, of the order  
deferring the restoration of the church in question, continue in  
force until they are revoked by an order of the bishop.

(2) Before making any order under this section the bishop  
shall, if possible, consult with the rural dean of the deanery  
and the archdeacon of the archdeaconry concerned.

(3) An order under this section shall be in writing and a copy  
thereof signed by the bishop shall be filed in the diocesan registry  
and a copy shall be posted on, or near to, the principal door of  
each of the places of worship to which the order relates.

Power of  
bishop to  
extend leave  
of absence  
granted to  
incumbent.

3. Where at the date declared under section one of this Measure an incumbent is absent from his parish by virtue of leave of absence granted under paragraph three of the Emergency Regulations, the bishop may from time to time grant him further leave of absence.

Powers of  
E.C. and  
Q.A.B.  
under s. 3 of  
the Clergy  
(National  
Emergency  
Precautions)  
Measure,  
1939.

4.—(1) Where at the date declared under section one of this Measure, the Ecclesiastical Commissioners or Queen Anne's Bounty are, under section three of the principal Measure, making a variation in the disposal of the income of any funds held or administered by them so as to accord with a varied arrangement for the cure of souls, the Ecclesiastical Commissioners or Queen Anne's Bounty as the case may be, may, after the expiration of the said Measure, continue to make the same variation, or such other variation as they may think fit, so long as the varied arrangement for the cure of souls continues.

(2) Payment of the whole, or a part, of the income of any such fund as aforesaid to, or to the nominee of, a bishop to be expended as directed by the bishop in providing for the cure of souls within his diocese in accordance with any varied arrangements from time to time in force therein shall be deemed to be such a variation in the disposal of that income as is authorised by the said section three.

A bishop shall annually, at such time and in such form as the Ecclesiastical Commissioners may require, send to them an account of the expenditure of any moneys so entrusted to him, or to his nominee.

Power of  
Ecclesiastical  
Commissioners  
to make special  
grants to  
clergymen  
in certain  
cases.

5. The Ecclesiastical Commissioners may at any time within five years of the expiration of the principal Measure make grants out of their common fund to any clerk in Holy Orders whose financial position shall appear to them to have been prejudiced directly or indirectly by the operation of the said Measure or of any Regulations made thereunder or of this Measure.

Further  
suspension  
in certain  
cases of  
liabilities in  
respect of  
maintenance  
and  
insurance.

6. Subject to the provisions of this section, where an order made by the Ecclesiastical Commissioners under section three of the Diocesan Reorganisation Committees Measure, 1941, for deferring the restoration of a church ceases to be in force, the provisions of paragraph (i) of subsection (3) of the said section (which relate to the suspension of liabilities in respect of maintenance and insurance) shall continue to apply in relation to that church until the Commissioners declare that they shall no longer so apply.

This section does not apply in relation to an order which has ceased to be in force before the passing of this Measure, but save as aforesaid, applies in relation to orders made either before or after the passing of this Measure.

7. The Benefice Buildings (Postponement of Inspections Continuance and Repayment of Loans) Measure, 1940, instead of expiring of 3 & 4. at the expiration of the present period of emergency, shall continue Geo. 6. No. 2. in force until the first day of January, 1951, and shall then expire and, accordingly, section three of that Measure (and the definition of "period of emergency") shall cease to have effect and in section two thereof for the words "During the present period of emergency" there shall be substituted the words "While this Measure continues in force."

8.—(1) Where the glebe of a benefice has suffered any war Provisions damage, as defined for the purposes of the War Damage Act, as to war damage to glebe. 1943, it shall be the duty of the incumbent of the benefice to report the facts to the Ecclesiastical Commissioners. 6 & 7 Geo. 6. c. 21.

(2) Where it has come to the notice of the Ecclesiastical Commissioners either from a report by the incumbent or from other sources, that the glebe of a benefice has suffered war damage, they may, after consultation with the incumbent, take in his name such steps, if any, with respect to the presentation and settlement by negotiation of claims for compensation and otherwise, as they deem expedient for safeguarding the permanent interests of the benefice.

9. Notwithstanding anything in the Representation of the Basis of Laity Measure, 1929, or the House of Laity Representation representation Regulation, 1923, the number of electors on the revised electoral rolls of the several dioceses in the Provinces of Canterbury and House of Laity at next election. York, as certified to the Secretary of the Church Assembly for the purposes of the election due to be held in the year nineteen 19 & 20 Geo. 5. No. 2. hundred and forty shall be the basis of representation to the House of Laity for the purposes of the postponed election to be held under the House of Laity (Postponement of Election) 3 & 4 Geo. 6. No. 1. Measure, 1939.

In paragraph 3 of the said Regulation the expression "the same year" shall be construed as meaning the year preceding that in which the postponed election is to be held.

10. The Measures mentioned in the Schedule to this Measure Application and this Measure, so far as it amends any of these Measures, of Measures may at any time before the expiration of two years, from the to the date declared under section one of this Measure be applied to the Channel Islands. Channel Islands. 21 & 22 Geo. 5. No. 4. the Channel Islands (Church Legislation) Measure, 1931, in accordance with the procedure set out in the Schedule to that Measure.

11.—(1) In this Measure references to a bishop shall be Interpretation. construed as references to the bishop for the time being of the diocese in question.

(2) If a bishopric is vacant, or a bishop is incapacitated by illness or otherwise, the powers exercisable by a bishop under this Measure may be exercised by such other ecclesiastical person as the Archbishops of Canterbury and York, or either of them, may appoint for the purpose.

Short title.

12. This Measure may be cited as the Emergency Legislation Measure, 1944.

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### SCHEDULE.

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The Diocesan Reorganisation Committees Measure, 1941.

The New Parishes Measure, 1943.

The Reorganisation Areas Measure, 1944.

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